

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                            |                           |                                                       |                                    |                                 |
|--------------------------------------------------|------------------------------------------------------------|---------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Liliana Manuel                  | Team:<br>Squad #03                                         | CCRB Case #:<br>201406943 | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                                            |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 07/10/2014 9:45 PM | Location of Incident:<br>Magenta Street and Holland Avenue | 18 Mo. SOL<br>1/10/2016   | Precinct:<br>47                                       |                                    |                                 |
| Date/Time CV Reported<br>Fri, 07/11/2014 9:31 AM | CV Reported At:<br>CCRB                                    | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 07/11/2014 9:31 AM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. DT3 David Robinson | 1653   | 947408 | GANG BX |
| 2. DT3 Jeffrey Scalf  | 4677   | 941138 | GANG BX |

| Officer(s)             | Allegation                                   | Investigator Recommendation |
|------------------------|----------------------------------------------|-----------------------------|
| A . DT3 David Robinson | Abuse: Det David Robinson stopped § 87(2)(b) | A . Unsubstantiated         |
| B . DT3 Jeffrey Scalf  | Abuse: Det Jeffrey Scalf stopped § 87(2)(b)  | B . Unsubstantiated         |
| C . DT3 Jeffrey Scalf  | Abuse: Det Jeffrey Scalf searched § 87(2)(b) | C . Unsubstantiated         |
| § 87(4-b) § 87(2)(g)   |                                              |                             |
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### Case Summary

On July 11, 2014, § 87(2)(b) filed the following CCRB complaint via telephone. On July 10, 2014, at approximately 9:45 p.m., § 87(2)(b) was riding his bike on the sidewalk of Magenta Street near Holland Avenue in the Bronx. Two officers, identified via the investigation as Det Jeffrey Scalf and Det David Robinson of the Bronx Gang Squad, pulled up next to § 87(2)(b) in an unmarked dark RMP and asked him to pull over. Det Scalf and Det Robinson exited the RMP, stood closely on each side of § 87(2)(b) and told him to dismount his bicycle (**Allegation A and B**). They told him he was being stopped because he had run a red light and was riding his bike on the sidewalk. An officer asked § 87(2)(b) for his identification. As § 87(2)(b) reached for his identification, one officer handcuffed him while the other searched him (**Allegation C**). § 87(4-b), § 87(2)(g)

§ 87(2)(b) was not arrested and did not receive any summonses.

### Mediation, Civil and Criminal Histories

- Mediation was presented to § 87(2)(b) over the phone on July, 11, 2014, and during his interview on August 5, 2014. § 87(2)(b) accepted mediation on both dates (encl. 3a-4c).
- Det Robinson rejected mediation on April 3, 2015, and Det Scalf rejected mediation on April 7, 2015. The case was subsequently returned to the investigations unit (encl. 11b-c).
- § 87(2)(b) has not filed a Notice of Claim with regard to this incident. § 87(2)(b), § 86(1)(3)&(4), § 87(2)(c)

### Civilian and Officer CCRB Histories (encl. 2a-c)

- This is the first complaint filed by § 87(2)(b)
- Det Scalf has been a member of the NYPD for 9 years and has been the subject of six allegations in three prior cases, three of which were substantiated. Among the six allegations were two stops, one frisk, one search of person, a question, and discourteous word.
  - In case 200911957, stop, frisk, and search of person allegations were substantiated. The NYPD's disposition was instructions.
- Det Robinson has been a member of the NYPD for 6 years and has had one previous CCRB allegation, which was not substantiated. § 87(2)(g)

### Findings and Recommendations

#### Explanation of Subject Officer Identification

- UF-250 logs and reports were requested from the 47<sup>th</sup> Precinct, Narcotics Bronx, Patrol Boro Bronx Anti-crime, Gang Bronx, and PSA 8. No UF-250 report was prepared for § 87(2)(b) from any of the aforementioned commands, and he was not listed in any UF-250 logs.
- § 87(2)(b) described Det Robinson as a white, Italian-looking male in his 30s, standing 5'7"-5'9" tall, with a medium build and dark hair, wearing plain clothes. Det Robinson is a § 87(2)(b) white male with Italian features, standing 5'9" tall, with an average build and black hair.
- § 87(2)(b) described Det Scalf as heavyset or stocky white male in his 30s, standing 5'5"-5'6" tall, who was either bald or had a buzz cut and light colored hair, with a light Southern accent, wearing street clothes. Det Scalf is a § 87(2)(b) white male, standing 5'6" tall, weighing 200 lbs, with a stocky build, with buzz cut light brown hair and a receding hairline. The undersigned investigator reviewed recordings of past CCRB interviews of potential

subject officers and confirmed that PO Scalf has a light Southern accent. The recording can be heard in IA #35 of case number 200911957.

- The tactical plan confirmed that Det Scalf and Det Robinson were assigned to a dark, unmarked RMP, as § 87(2)(b) had alleged (encl. 6b).
- A single shot photo viewing of eight officers was conducted on February 6, 2015, during which § 87(2)(b) quickly identified Det Robinson to be the partner of the officer with the Southern accent. § 87(2)(b) debated whether or not Det Scalf was Det Robinson's partner with the Southern accent. Ultimately, § 87(2)(b) did not identify Det Scalf to be Det Robinson's partner, but identified a filler to be Det Robinson's partner. The filler, Detective Armengol Deida of Queens Narcotics, had a similar appearance and build to Det Scalf but had longer hair. After identifying Det Deida, § 87(2)(b) commented that at the time of the incident Det Deida must have had shorter hair than he did in his officer photo. He compared the photos of Det Deida and Det Scalf, and stated that Det Deida's hair must have been cut more like Det Scalf's hair during the incident (encl. 4f-n).
- § 87(2)(g)

### **Recommendations**

**Allegation A – Detective David Robinson stopped** § 87(2)(b)

**Allegation B – Detective Jeffrey Scalf stopped** § 87(2)(b)

**Allegation C – Detective Jeffrey Scalf searched** § 87(2)(b)

§ 87(2)(b) provided a phone statement on July 11, 2014, during which he accepted mediation. Preliminary police documents did not reveal the subject officers, and so § 87(2)(b) was scheduled to provide a sworn statement. § 87(2)(b) was interviewed at the CCRB on August 5, 2014, § 87(2)(g) (encl. 3a-4o).

§ 87(2)(b) stated that while riding his bike on the sidewalk down Magenta Street, two officers identified via the investigation as Det Scalf and Det Robinson pulled up next to him in an unmarked RMP and asked him to pull over. An officer informed § 87(2)(b) that he had been stopped because he ran a red light and was riding his bike on the sidewalk. Det Scalf and Det Robinson stood closely on each side of § 87(2)(b) and asked him to dismount his bike. An officer asked § 87(2)(b) for his identification. During § 87(2)(b)'s phone statement he alleged that as he reached for his identification, Det Robinson handcuffed him and Det Scalf then searched him. During his CCRB interview, § 87(2)(b) was unsure as to which officer handcuffed him and which searched him but still believed that Det Robinson had handcuffed him and that Det Scalf had searched him. Det Scalf removed the contents of § 87(2)(b)'s pockets including his work identification. The officers informed § 87(2)(b) that they also stopped him because he was in a dangerous area. They then released him without issuing any summonses.

This case was returned from the mediation unit to the investigations unit on April 3, 2015. Det Scalf and Det Robinson were interviewed at the CCRB on April 23, 2015, nine months after the incident (encl. 5a-j). Both detectives were provided with a brief narrative of the incident and presented with a photo of § 87(2)(b). Neither detective recognized § 87(2)(b) or could recall the incident. Neither detective recalled stopping or searching § 87(2)(b). The detectives had no entries in their memo books after 7:00 p.m., when they resumed patrol of the 47<sup>th</sup> Precinct, until 10:35 p.m., when they arrested two men approximately ten minutes away from Magenta Street and Holland Avenue.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that  
**Allegations A, B and C** be closed as **Unsubstantiated**.

§ 87(4-b), § 87(2)(g)

[REDACTED]

Pod: \_\_\_\_\_

Investigator: \_\_\_\_\_  
Signature Print Date

Supervisor: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date